

22STCV14630 22STCV14630

County: los-angeles

Division: Civil Law and Motion

Department: D

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Case Number: 22STCV14630 Hearing Date: August 18, 2026 Dept: D

VANESSA TRACE, ET AL. V. GABRIEL GODOY, ET AL.

CASE NO.: 22STCV14630

HEARING: 08/18/2026 @ 8:30 a.m.

#1

TENTATIVE RULING (BRENNAN BRIONES)

Petitioner Vanessa Trace's petition for approval of compromise of claim or action or disposition of proceeds of judgment for minor Claimant Brennan Briones is DENIED. Petitioner may submit an amended Petition correcting all deficiencies. The Hearing on Petition to Confirm Minor's Compromise set September 9, 2026, is vacated. The Court sets a Hearing on Amended Petition to Confirm Minor's Compromise on November 6, 2026, at 9:30am. Petitioner must file amended documents by September 18, 2026.

Moving Party to give notice.

Petitioner Vanessa Trace (Petitioner) brings this petition for approval of compromise of claim or action or disposition of proceeds of judgment as the Guardian ad litem and parent of the minor Claimant Brennan Briones. (Claimant).

Legal Standard

Compromises of disputed claims brought by minors are governed in part by Code of Civil Procedure section 372. The statute allows a guardian ad litem to appear in court on behalf of a minor claimant and gives the guardian ad litem the power to compromise the minor's claim "with the approval of the court in which the action or proceeding is pending." A petition for court approval of a compromise must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise or covenant. (California Rules of Court (CRC) Rule 7.950.)

CRC Rule 7.952 subdivision (a) requires the attendance of the petitioner and claimant at the hearing on the compromise of the claim unless the court for good cause dispenses with their personal appearance.

CRC Rule 7.955(a) requires courts to use “a reasonable fee standard” when approving and allowing the amount of attorneys’ fees payable from money to be paid for the benefit of a minor and requires that courts “give consideration to the terms of any representation agreement made between the attorney and the representative of the minor . . . and evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor . . . contemplated that the attorneys’ fee would be affected by later events.” CRC Rule 7.955(b) sets forth fourteen nonexclusive factors the Court may consider in determining a reasonable attorney’s fee. CRC Rule 7.955(c) requires that a petition requesting Court approval and allowance of an attorney’s fee under 7.955(a) must include a declaration from the attorney that addresses the factors listed in 7.955(b) that are applicable to the matter before the Court.

Analysis

The Court has reviewed the petition filed on June 30, 2026, by Petitioner on behalf of Claimant.

Petitioner has submitted a completed Judicial Council form MC-350 on behalf of the minor Claimant, signed by Petitioner, together with a proposed Order Approving Compromise (form MC-351).

Petitioner seeks court approval of a settlement under which Claimant will receive a gross settlement of \$2,500.00. Petitioner does not request attorney’s fees, medical expenses, or costs from Claimant’s settlement proceeds. Accordingly, the petition reflects that Claimant’s net recovery is \$2,500.00, to be paid to Claimant’s mother, Vanessa Trace, for the interest and benefit of Claimant pursuant to Probate Code sections 3401 and 3402.

However, the Court DENIES the petition without prejudice for the following reasons:

Attachment 8 is deficient and appears inconsistent with Item 8(a). Item 8(a) states that Claimant has recovered completely from his injuries and has no permanent injuries. However, the most recent medical records submitted with Attachment 8 are from 2024 and reflect that Claimant continued to experience neck and back pain and migraines and was continuing physical therapy. The petition, filed in June 2026, does not include a more recent report addressing Claimant’s current condition or otherwise establishing that the 2024 records accurately reflect his current condition.

Attachment 11(b)(6) has not been submitted. The petition reflects that Claimant will receive \$2,500.00, while Petitioner Vanessa Trace will receive \$750,000.00, Cindy Viveros will receive \$30,000.00, and Richi Briones will receive \$2,500.00. Although Attachment 11(b)(3) explains that Petitioner’s individual settlement has no effect on Claimant’s compromise, it does not explain the basis for the apportionment among the settling plaintiffs as required by Item 11(b)(6).

Item 14 is incomplete. Neither Item 14(a) nor Item 14(b) is selected. Although the petition does not request reimbursement of any medical expenses from Claimant’s settlement proceeds, Item 12(b)(1) states that Petitioner paid \$1,690.00 in Claimant’s medical expenses.

Item 17(a)(2) is incomplete. Petitioner indicates that she has been represented or assisted by counsel, but does not select whether Petitioner and counsel “do” or “do not” have an agreement for services provided in connection with Claimant’s claim.

The proposed order is incomplete. Item 1(b) should be selected to reflect that a hearing is being held; Item 5, finding that notice has been given as required by law, is not selected; and Item 6(b), reflecting that Claimant’s consent is not required because Claimant is a minor, is not selected.

The petition should clarify the courthouse/branch information. The petition identifies the pending action in Item 3(b) as being in the Stanley Mosk Courthouse and identifies the Spring Street courthouse in the caption, while the attached reservation

reflects that the petition is reserved for hearing in Department D at the Norwalk Courthouse.

Conclusion

Petitioner Vanessa Trace's petition for approval of compromise of claim or action or disposition of proceeds of judgment for minor Claimant Brennan Briones is DENIED. Petitioner may submit an amended Petition correcting all deficiencies. The Hearing on Petition to Confirm Minor's Compromise set September 9, 2026, is vacated. The Court sets a Hearing on Amended Petition to Confirm Minor's Compromise on November 6, 2026, at 9:30am. Petitioner must file amended documents by September 18, 2026.

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TENTATIVE RULING (RICHI BRIONES)

Petitioner Vanessa Trace's petition for approval of compromise of claim or action or disposition of proceeds of judgment for minor Claimant Richi Briones is DENIED. Petitioner may submit an amended Petition correcting all deficiencies. The Hearing on Petition to Confirm Minor's Compromise set September 9, 2026, is vacated. The Court sets a Hearing on Amended Petition to Confirm Minor's Compromise on November 6, 2026, at 9:30am. Petitioner must file amended documents by September 18, 2026.

Moving Party to give notice.

Petitioner Vanessa Trace (Petitioner) brings this petition for approval of compromise of claim or action or disposition of proceeds of judgment as the Guardian ad litem and parent of the minor Claimant Richi Briones. (Claimant).

Legal Standard

Compromises of disputed claims brought by minors are governed in part by Code of Civil Procedure section 372. The statute allows a guardian ad litem to appear in court on behalf of a minor claimant and gives the guardian ad litem the power to compromise the minor's claim "with the approval of the court in which the action or proceeding is pending." A petition for court approval of a compromise must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise or covenant. (California Rules of Court (CRC) Rule 7.950.)

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representative of the minor . . . contemplated that the attorneys' fee would be affected by later events." CRC Rule 7.955(b) sets forth fourteen nonexclusive factors the Court may consider in determining a reasonable attorney's fee. CRC Rule 7.955(c) requires that a petition requesting Court approval and allowance of an attorney's fee under 7.955(a) must include a declaration from the attorney that addresses the factors listed in 7.955(b) that are applicable to the matter before the Court.

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Attachment 11(b)(6) has not been submitted. The petition reflects that Claimant will receive \$2,500.00, while Petitioner Vanessa Trace will receive \$750,000.00, Cindy Viveros will receive \$30,000.00, and Brennan Briones will receive \$2,500.00. Although Attachment 11(b)(3) explains that Petitioner's individual settlement has no effect on Claimant's compromise, it does not explain the basis for the apportionment among the settling plaintiffs as required by Item 11(b)(6).

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